



INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

Mid-Autumn Semester Examination 2025-26

Date of Examination: _____ Session: (FN/AN) _____ Duration: 2Hrs Full Marks: 30 Subject No.: _____
Subject: Labour Laws I Department/Center/School: RGSoIPL Specific charts, graph paper, log book etc., required: NA Special Instructions (if any):

Read the Following Questions and answer accordingly:

1. The state of Dakshin Janadesh passes a new law called the “Decent Work and Labour Dignity Act, 2025.” This Act mandates:

Every employer, including in the private and unorganised sectors, must provide a living wage, paid maternity leave, access to childcare, and community health insurance to all workers.

The State Government also launches a campaign titled “Kaam ka Adhikar”, declaring the right to work, skill training, and social security as legal entitlements enforceable against employers and local authorities.

Simultaneously, a central law: the Labour Rights and Industrial Harmony Code, 2024, provides a more moderate framework for similar issues, excluding unorganised and informal workers.

Several employer associations challenge the state law, arguing that it:

1. Violates their fundamental rights to run their businesses,
 2. Overreaches state legislative powers under the Constitution, and
 3. Forces private actors to fulfil what are essentially State obligations under Part IV.
- A. Identify and explain how the provisions of the Decent Work and Labour Dignity Act reflect the goals and obligations under Part IV of the Constitution (Directive Principles of State Policy). (3 marks)
- B. Analyze the conflict between the labour protections in the Act and the fundamental rights of employers. (3 marks)
- C. Examine whether the state law is constitutionally valid in light of an existing central law on the same subject. Discuss with reference to the Seventh Schedule and the doctrines of pith and substance, repugnancy, and cooperative federalism. (4 marks)

2. Shakti Textile Mills, a mid-sized garment manufacturing company in West Bengal, recently faced a turbulent period. A conflict arose when 60 women workers complained about poor working conditions, low pay compared to their male counterparts, and repeated instances of verbal and physical harassment by a male supervisor. When the complaints were ignored, the workers staged a peaceful sit-in strike.

In response, the management declared a lockdown, citing safety concerns. The strike lasted 10 days. After failed internal negotiations, the government referred the matter to the Industrial Tribunal under the Industrial Disputes Act. Meanwhile, 18 workers, mostly union leaders, were retrenched without notice. Later, 5 of the retrenched women approached the High Court, citing both wrongful termination and sexual harassment under the POSH Act.

Shakti Mills’ dispute has been referred to the Industrial Tribunal.

- A. As a student of labour law, identify and explain the powers and functions of the Industrial Tribunal in this case. (5 marks)
- B. In the context of a strike followed by a lockdown, assess the legal validity of retrenching 18. Under what conditions can the Industrial Tribunal grant reinstatement or compensation, and are the workers entitled to wages during the period of lockdown? Support your answer with relevant legal provisions and case law. (5 marks)
- C. Trace the evolution from Vishaka v. State of Rajasthan to the POSH Act, 2013, in the context of this case. (5 marks)

3. The idea of ‘labour’ has not remained static—it has evolved from feudal obligations to industrial employment, and now to gig and platform work. Drawing from both Indian and

global developments, trace how historical events, philosophical ideas, and socio-economic transitions have shaped the evolution of labour law. (5 marks)

INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

Rajiv Gandhi School of Intellectual Property Law

Mid Semester Examination 2025

Subject: Alternative Dispute Resolution

Maximum marks: 30 marks

Duration: two hours

1. Explain the legislative evolution of the system of appointment of arbitrators under Section 11. Also, simultaneously refer to the judicial opinion of the Supreme Court under respective stages. In particular, refer to the sub-sections of 3A, 4, 5 and 6 in your answer. (10 marks) *conclude*
2. The independence and impartiality of arbitrators is very crucial to sustain the public confidence in the arbitral process. In this context, explain the obligations of the arbitrator towards the parties seeking his appointment. Can he be removed from his office for violation of those obligations? Explain the grounds and procedure for challenge of arbitrators as laid down in the Indian Arbitration and Conciliation Act, 1996. Explain the changes introduced by the Amendment Act, 2015. (10 marks)
3. Write short on all of the following:
 - a) Waiver ⁴
 - b) Extent of judicial intervention
 - c) Arbitration agreement
 - d) Power to refer the parties to arbitration ²⁰
 - e) International commercial arbitration ²⁵



INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

Mid-Autumn Semester Examination 2025-26

Date of Examination: 20/09/2025 Session: (FN/AN) FN Duration: 2 Hrs Full Marks: 30
Subject No. : IP60211 Subject : Corporate Insolvency
Department/Center/School: Rajiv Gandhi School of Intellectual Property Law Specific charts, graph paper, log book etc., required: NA Special Instructions (if any) : All questions are compulsory

Answer the following questions:

- ✓ 1. Is a refund of advance for undelivered goods qualify as an operational debt? Give reasons by referring to provisions of law and judicial decisions? [10 Marks]
2. Discuss the possible legal challenges to a creditor's Section 7 application under the Insolvency and Bankruptcy Code 2016, including judgment in Vidarbha Industries Power Limited (2022) case? [10 Marks]
3. a) ✓ Explain *creditor-oriented model* and *debtor-oriented model* of insolvency and state the two possible outcomes under the two models? [05 Marks]
b) ✓ State the debtor-side incentives of early filing of insolvency under Section 10 Insolvency and Bankruptcy Code 2016? [05 Marks]



INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

Mid-Autumn Semester Examination 2025-26

Date of Examination:

Session: (FN/AN) FN Duration: 2Hrs Full Marks: 30

Subject No: IP60122 Subject: Taxation Law Department/Center/School: Rajiv Gandhi School of Intellectual Property Law Specific charts, graph paper, log book etc., required: NA Special Instructions (if any):

Q.1.

A. Mr Vivek Agarwal is an employee of a nationalized bank. His salary for the month of March 2024 became due on the 1st of April 2024 as per the company's policy. However, due to a system error, the salary was credited to her account only on the 5th of April 2024. Moved by a natural calamity, he decided to surrender this month's salary to the Prime Minister's Relief Fund after it was credited to her account.

Based on the above, answer the following: (5 Marks) 3-30

- What is the concept of Previous Year and Assessment Year? In which AY (2024-25 or 2025-26) will the salary income for March 2024 be taxable? Explain the reason with reference to the charging provision.
- Will the act of surrendering the salary to the relief fund make it non-taxable for Vivek? If not, then why? Under what specific condition can surrendered salary be exempt from tax? *due and payable*
- Vivek, in addition to his basic salary, receives a Transport Allowance of ₹3,000 per month from his bank to cover his commute. The bank also provides him with a company car that is used for both official and personal purposes. Explain the fundamental difference in the nature of these two components of his salary and how they will be treated for the purpose of computing his taxable income.

B. XYZ is a company which is owner of a well know business brand in food industry. It sells packaged food items and also owns many restaurants under its brand name across multiple states in India. Desirous of having a restaurant in every prominent district in the country, XYZ invited tenders from reputed business entities to express their interest for operating its restaurant on franchisee basis. Based upon extensive negotiations XYZ concluded three agreements with A Co, B Co, and C Co who agreed to operate as a franchise for restaurants of XYZ in three different districts of India. XYZ agreed to permit them to use its brand name and trademark in return of INR 1 crores each month as franchise and licence fee. Under the agreements each of these three companies agreed to pay the amount for a minimum period of one year. Under the agreement, any GST liability of any nature was to be borne by three companies.

Due to business reasons, after 8 months following events took place;

subject to B Co paying the balance amount for the year in advance;

(ii) A Co became a defaulter and subsequently, and upon conclusion of its insolvency proceedings, XYZ received INR 0.75 cr as full and final settlement; and

(iii) XYZ agreed with the representation of C Co that franchise and licence fee was excessive and it was mutually agreed that the fee would be revised downwards to INR 45 lakhs per month because C Co paid INR 6 cr immediately instead of the agreed amount for the ¹²~~balance~~₅₀ period of the year.
240

XYZ has been served with a show cause notice by GST authorities. XYZ is desirous of taking the following stand. You are required to advise XYZ on the correctness of its stand. **(5 marks)**

(i) Amount of INR 4 cr received by XYZ from B Co each is not liable to GST because it is not against any supply;

(ii) Amount of INR 0.75 cr received by XYZ from A Co is not liable to GST; and

(iii) Amount of INR 6 cr received by XYZ from C Co is not liable to GST because it is compensation for future loss of earnings.

Q.2. The doctrine of “form vs. substance” plays a crucial role in Indian tax jurisprudence, particularly in cases involving tax avoidance and corporate structuring. With reference to landmark judicial pronouncements such as McDowell & Co. Ltd. v. CTO (1985), Union of India v. Azadi Bachao Andolan (2003), and Vodafone International Holdings B.V. v. Union of India (2012), critically examine whether Indian tax authorities and courts should prioritize the legal form of transactions or the economic substance in determining tax liability.

Support your answer with relevant laws and cases. **(10 Marks)**

Q.3. Discuss the constitutional limitations on the power of taxation in India. In your answer, examine the distribution of taxing powers between the Union and the States under the Constitution of India and explain how the judiciary has interpreted the scope of legislative competence in taxation matters. **(10 Marks)**

22 03
42 - 43



INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

Mid-Autumn Semester Examination 2025-26

Date of Examination: _____ Session: (FN/AN) _____ Duration: 2 Hrs Full

Marks: 30

Subject No.- IP60131 Subject : Other forms of IP

Department/Center/School: RGSOIPL Specific charts, graph paper, log book etc., required _____ Special Instructions (if any) :

Answer all the questions below:

Question 1:

7 marks

Case Scenario: A company, AlphaTech, develops a unique manufacturing process which gives it a competitive advantage in the market. The process is neither patented nor disclosed publicly. The company treats this information as confidential and takes measures to keep it secret. A former employee, having knowledge of this process, leaves and begins manufacturing a similar product using a similar process at another company.

Question:

- (a) Explain the concept of trade secrets and how trade secrets fit within the broader domain of intellectual property.
- (b) Discuss the key differences and overlaps between trade secret protection and other forms of intellectual property such as patents and copyrights.
- (c) Analyze the legal protection options available to AlphaTech for safeguarding their manufacturing process as a trade secret, including advantages and limitations compared to patent protection.

Question 2:

7 marks

Case Scenario : TechNova Inc., a U.S.-based software company, employs Alex as a senior engineer who has access to proprietary algorithms, client databases, and confidential product roadmaps. After resigning, Alex accepts a position at a direct competitor, CodeEdge LLC, in a role that significantly overlaps with his previous responsibilities and may require similar technical expertise. Although Alex has not signed a non-compete agreement, TechNova argues that given his intimate knowledge of its trade secrets, his employment at CodeEdge will inevitably lead to the disclosure or use of TechNova's confidential information and seeks an injunction under the DTSA, claiming that Alex contends that he has every intention to maintain confidentiality and that preventing him from working amounts to an unlawful restraint of trade.

Question:

As a federal court assessing this dispute, analyze whether TechNova can successfully invoke the doctrine of inevitable disclosure under trade secret law. Analyze the relevance and limitations of the doctrine of inevitable disclosure for granting injunctive relief. Discuss the provision of the DTSA regarding threatened misappropriation and employment, the judicial split over recognizing inevitable disclosure, any leading precedents, and how courts balance trade secret protection against employee mobility.

Question 3:

7 marks

Case Scenario: InnovateX Pvt. Ltd., a technology startup based in Bengaluru, spent three years developing a proprietary software algorithm for real-time fraud detection. Raj, a lead engineer at InnovateX, resigns and joins SecureFin Solutions—a direct competitor—within weeks. Shortly after, SecureFin launches a similar fraud detection tool. InnovateX alleges that Raj used confidential information acquired during his employment to give SecureFin a commercial “head start.” InnovateX seeks legal relief from the appropriate Indian court, invoking the springboard doctrine.

Questions:

- (a) What is the springboard doctrine and how is it relevant to the protection of trade secrets in India?
- (b) Discuss the key judicial precedents where Indian courts have applied the springboard doctrine. What remedies have Indian courts recognized for an employer under this doctrine?
- (c) Assess whether InnovateX is likely to succeed in obtaining an injunction against Raj and SecureFin under the springboard doctrine. What legal and equitable factors will the Indian court consider?

Question 4:

9 Marks

Write short notes on any three.

- a. TRIPS and protection of confidential information
- b. The Litmus Test for Trade Secret *6 for 30%*
- c. Whistle blowing exception in EU Trade Secret Directive
- d. Overlap between copyright and trade secret protection



INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR
Mid-Autumn Semester 2025-26

Date of Examination: 22/09/2025 Session: FN Duration 2 hrs Full Marks: 30

Subject No.: IP61019 Subject: IPR Management

Department/Center/School: Rajiv Gandhi School of Intellectual Property Law

Specific charts, graph paper, log book etc., required: Not Applicable

Special Instructions:

1. All questions are compulsory
 2. Numbers on right side in bracket indicate marks
-

1. Please read the case study carefully, and answer the following questions.

Case Study: University IP and the Knowledge Economy

Background

A consortium of leading Indian universities establishes a Technology Transfer Hub to commercialise their research outputs in biotechnology, clean energy, and AI. The initiative is supported by the government, which views it as central to India's shift toward a knowledge economy.

An IP audit highlights the following:

1. Most universities lack a uniform IP policy, leading to inconsistent ownership of patents and copyrights.
2. Faculty members resist commercialisation, prioritising academic freedom and publications over patents.
3. Start-ups spun out of these universities struggle to attract investors due to unclear IP ownership and weak enforcement.
4. The government pressures the Hub to increase patent filings as part of India's global innovation rankings, but critics argue that patent counts alone do not reflect knowledge economy growth.

Questions

1. Map the IP issues facing the universities (patents, trademarks, copyrights, industrial designs, trade secrets) and explain their relevance to building a knowledge economy. 5
 2. Evaluate the role of a clear institutional IP policy in fostering innovation, tech transfer, and entrepreneurship. 5
 3. Propose reforms for university IP governance that align with national IP policy objectives and strengthen India's position in the knowledge economy. 5
 4. Critically assess whether focusing on patent quantity or patent quality and commercialisation is more important for sustainable knowledge economy development. 5
-
2. Kindly provide five differentiating points between "Patent pool" & "Patent portfolio". 5
 3. Explain with example - Transforming "Intellectual Property" into "Intellectual Capital" in competing economy. Kindly limit your answer to 10 very relevant points along with example. 5

=====



INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

Mid-Autumn Semester Examination 2025-26

Date of Examination: _____ Session: (FN/AN) _____ Duration: 2 Hrs Full Marks:

30 Subject No. : IP61021 Subject : Information Technology Law

Department/Center/School: _____

Specific charts, graph paper, log book etc., required _____

Special Instructions (if any) : _____

Q1. Brahmoguru *alias* Tara Chand (Plaintiff) is a spiritual guru imparting yoga and traditional knowledge of Vedas as well as run a world-class ashram. He is a recipient of the second highest civilian honour Padma Vibhushan. Raghav (Defendant No.1) is an online content creator having accounts in YouTube, Instagram and X (Defendant Nos. 2-4). He made and uploaded a video with title "Brahmoguru Exposed: What's happening in Tara Chand ashram?" Before uploading the video, he published tweets and posts to promote the same. As of now more than 20 lakh views have already been garnered on the said video and more than 13,500 comments have been received. The veracity of the content is doubtful.

Brahmoguru ashram team denies the allegations made in the video. They allege that the video is defamatory in nature and tarnish the reputation of Brahmoguru. They are mulling over to get permanent injunction against all the defendants for taking-down the said video not only in India but also worldwide. Meanwhile, they sent email to Defendants Nos. 2-4 to remove the video and all the links.

The Defendants Nos. 2-4 reply that they cannot do so without any appropriate order from the competent authority.

X a micro-blogging platform and social network took stand that they would not remove the said video. It is a company registered under the US laws and the American Constitution First Amendment allows wide discretion as to freedom of speech. The Indian government by pressurising them is scuttling the free speech as well as accuses them of press censorship.

Raghav spoke to the media reporter that he apologies for the video. He is not the first originator. But video was sent to him by anonymous number with country code (+92). 3165 3161

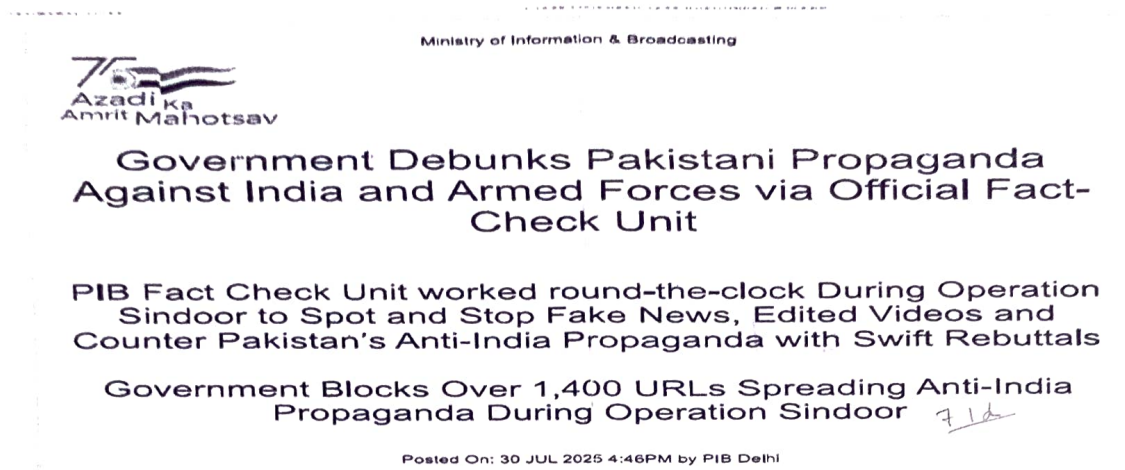
Prepare a legal brief citing relevant provisions of IT Act 2000, 2021 Rules and case-laws on the behalf of:

- (i) Plaintiff – Brahmoguru
- (ii) Defendant No.1 – Raghav
- (iii) Defendants Nos. 2,3, and 4 – YouTube, Instagram and X

You should structure brief as – (a) Legal Issues (b) Legal Provisions (c) Legal Arguments with supporting case-laws.

(Marks 12)

Q2. Read the following excerpt dated 30.07.25 published Press Information Bureau (PIB):



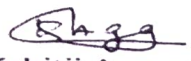
Answer the following questions citing relevant provisions of IT Act/Rules and case-laws:

- (i) What is the Indian legal position with regard to stopping fake news? ✓
- (ii) Discuss the legal validity of the PIB as a fact-check unit.

(Marks 08)

Q3. Read the following excerpt dated 08.05.25 from the Ministry of Information and Broadcasting – Advisory issued on carrying content having its origin in Pakistan to OTT Platforms under the Part III of the Information Technology (Intermediary Guidelines and Digital Media, Ethics Code) Rules, 2021:

4. Several terrorist attacks in India have been established to have cross-border linkages with Pakistan based State and non-State actors. Recently, on 22.04.2025, the terrorist attack in Pahalgam led to the killing of several Indians, one Nepali citizen, and injuries to a number of others. ✓
5. In the interest of national security, all OTT platforms, media streaming platforms and intermediaries operating in India are advised to discontinue the web-series, films, songs, podcasts and other streaming media content, whether made available on a subscription based model or otherwise, having its origins in Pakistan with immediate effect.
6. This issues with the approval of competent authority in the Ministry.


(Kshitij Aggarwal)
Deputy Director

- (i) Discuss the legality of the above advisory.
- (ii) Seema a citizen of India found on the YouTube India that even after the advisory the songs from Coke Studio Pakistan are still available. She wants to raise her grievance. You are Seema's friend who is well versed with the IT Act 2000 and the Rules 2021. Advise her step-by-step measures she can take.

(Marks 10)
